

Code, § 7068, subd. (b)(3).) The “qualifier” RMO or RME must be a bona fide officer or employee of the corporation and actively engaged in work encompassed by the license. (Bus. & Prof. Code, § 7068, subd. (c).)

Here, it is the position of defendants that Murphy was the RMO for DG Design Group Builders, Inc. Murphy has his own license number and the company has a separate license number. Murphy replaced the former RMO in 2022. Plaintiffs assert that Murphy would only “walk the job” and had no other responsibilities when he would visit. Though “walk to job” is not entirely clear, plaintiffs also contend he only spent ten to twenty minutes there when he would visit, and this was only every couple of weeks. (See SSUMF Fact Nos. 11-12.) Plaintiffs outline various tasks that Murphy did *not* perform. (SSUMF, Fact Nos. 11-16.)

The list of tasks plaintiffs contend Murphy did not perform does not necessarily preclude compliance with the statutory scheme. Most importantly, plaintiffs do not rule out that Murphy was exercising “direct supervision or control” as required by Business and Professions Code, § 7068.1 (a), by “monitoring and being available to assist others to whom direct supervision and control has been delegated.” (Bus. & Prof. Code, § 7068.1 (c)(3).)

Plaintiffs fail to meet their initial burden. The additional facts highlight this issue by including statements that “Murphy and George discuss projects weekly” and Murphy “monitors the projects and work” and “makes himself available to assist others within the company who directly supervise and control the company’s operations [...]” (Additional Material Fact Nos. 37-38.)

While plaintiffs’ reply attempts to dismiss these statements in defendants’ declarations as “sham declarations” that contradict their depo testimony, the Court does not agree that there is complete contradiction. Plaintiffs’ own evidence shows Murphy testified he “would go look at jobs, make sure things are okay.” (Declaration of Ani N. Keledjian, Ex. B, 12:21-22.) This is consistent with the “monitoring” mentioned in Business and Professions Code, § 7068.1 (c)(3). Further, the fact that Murphy was never “consulted about any problems” (see Declaration of Ani N. Keledjian, Ex. B, 32:2-15) does not equate to him having not “being available” as mentioned in Business and Professions Code, § 7068.1 (c)(3).

Even assuming the procedural concerns with summary adjudication could be overcome, and that the moving papers shifted the burden to defendants, there are triable issues precluding summary judgment. (See, e.g., Additional Fact Nos. 37-38.)

Accordingly, the motion must be DENIED.

4. 9:00 AM CASE NUMBER: C24-00464
CASE NAME: WILMINGTON SAVINGS FUND SOCIETY, FSB, ETC. VS. LANE JENKINS
HEARING ON SUMMARY MOTION
FILED BY:
TENTATIVE RULING:

Before the Court is a motion by Wilmington Savings Fund Society, FSB, not in its individual capacity but solely as owner trustee on behalf of Antlr Mortgage Trust 2021-RTL 1 for summary judgment. For the reasons set forth, the motion is **DENIED, without prejudice.**

The motion for summary judgment is filed by the entity "Wilmington Savings Fund Society, FSB, not in

its individual capacity but solely as owner trustee on behalf of Antlr Mortgage Trust 2021-RTL 1," which was the named plaintiff when the complaint initiating the action was filed. On November 20, 2024, the Court filed an order on the parties' "Stipulation for Substituting Real Parties in Interest Finance of America LLC and Wilmington Savings Fund Society, FSB as Trustee for Antlr Mortgage Trust 2024-RTL1 as Plaintiffs." (11/20/2024 Plaintiff Substitution Stipulation and Order.) The parties' stipulation states that following the filing of the complaint, the beneficial interest in the \$990,000 loan ("Loan 0004") was assigned to Finance of America LLC, and the beneficial interest in the \$825,000 loan ("Loan 0001") was assigned to Wilmington Savings Fund Society, FSB as Trustee for Antlr Mortgage Trust 2024-RTL1. (11/20/2024 Plaintiff Substitution Stipulation p. 2, ll. 10-24.)

The order on the November 20, 2024 Plaintiff Substitution Stipulation provides (1) Finance of America LLC and Wilmington Savings Fund Society, FSB as Trustee for Antlr Mortgage Trust 2024-RTL1, identified as the real parties in interest, will be substituted as plaintiffs, and (2) Finance of America LLC and Wilmington Savings Fund Society, FSB as Trustee for Antlr Mortgage Trust 2024-RTL1 are ordered to file a first amended complaint within 10 days of the Court's order. The first amended complaint was required to be filed by December 2, 2024 (November 30, 2024, 10 days following the Court's order was a Saturday).

Finance of America LLC and Wilmington Savings Fund Society, FSB as Trustee for Antlr Mortgage Trust 2024-RTL1 did not file the first amended complaint by the Court-set deadline or thereafter in violation of the order and despite the stipulation that those parties, as the real parties in interest who were assigned the loans subject to the action after the complaint was filed, will be substituted as plaintiffs in the case. Because the motion for summary judgment was not filed by the real parties in interest substituted as plaintiffs under the November 20, 2024 Plaintiff Substitution Stipulation and Order, and because the real parties in interest failed to file the first amended complaint as ordered by the Court, the motion is **DENIED, without prejudice** to refiling when these procedural issues are cured.

5. 9:00 AM CASE NUMBER: C24-00797
CASE NAME: MAHYAR NOORAEI VS. MATTHEW ARVIN
***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT**
FILED BY: ARVIN, MATTHEW
TENTATIVE RULING:

Before the Court is Defendants Matthew Arvin and Sepideh Matthew, individually and as co-trustees of the Arvin Matthew and Sepideh Matthew Declaration of Trust dated September 19, 2022's Motion to Set Aside Default ("Motion").

Defendants' Motion is **GRANTED**.

Procedural History

Plaintiffs filed their complaint on March 25, 2024. Plaintiffs filed Proofs of Service of Summons on August 11, 2025, indicating that both Defendants were personally served on June 17, 2025. As such, any responsive pleading was due on or before July 17, 2025. When no responsive pleadings were filed, Plaintiffs sought and were granted defaults against the Defendants on August 26, 2025.